CITY OF OPA-LOCKA

"The Great City"

SPECIAL COMMISSION MEETING MINUTES
June 28, 2012
10:00 A.M.
Opa-locka Municipal Complex
780 Fisherman Street, 2nd Floor
Opa-Locka, FL 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 10:05 a.m. on Thursday, June 28, 2012 on the 2nd Floor of the Opa-locka Municipal Complex, 780 Fisherman Street, Opa-Locka, Florida.

2. ROLL CALL:

The following members of the City of Opa-locka City Commission were present: Vice Mayor Dorothy Johnson, Commissioner Timothy Holmes, Commissioner Gail Miller, and Mayor Myra L. Taylor. Also in attendance were: City Attorney Joseph S. Geller and Interim City Clerk Joanna Flores. Commissioner Rose Tydus arrived at 10:09 a.m.

3. INVOCATION:

The Invocation was delivered by Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. INTERVIEWS FOR CITY MANAGER:

Commissioner Miller said she selected two for candidates to be interviewed for City Manager. One candidate withdrew his name and the other candidate has another job. She wanted to submit two more names and was told the deadline was Friday, June 22, 2012. Mayor Taylor provided the City Clerk's Office with the names of her two candidates on Monday, June 25, 2012 which was unfair.

Vice Mayor Johnson said she did not know what time everyone provided the names of their candidates to the City Clerk's Office.

The City Commission conducted interviews for the position of City Manager for the City of Opa-locka as follows:

1. David Chiverton
2. Kelvin L. Baker, Sr.
3. Geli Eldemire

4. Matthew Schwartz
5. Vincent Brown

Each commissioner asked questions and allowed the candidates to respond and give a closing statement.

Upon conclusion of the candidate's interviews, the City Commission entered into discussion.

It was moved by Commissioner Tydus, seconded by Mayor Taylor to extend an offer to Kelvin L. Baker, Sr. to be the City Manager for the City of Opa-locka.

Vice Mayor Johnson said she was bias because she heard that Mr. Baker was going to be selected prior to him being interviewed. The rumor was that Mr. Baker was going to be chosen, but in her opinion he seemed to be very knowledgeable.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes
Vice Mayor Johnson	Yes

Commissioner Holmes said he would like to make a recommendation for Mr. Baker to start his employment with the City of Opa-locka as soon as possible. He is aware that Mr. Finnie's term expires July 27, 2012, but he can assist Mr. Baker from home so there's only one City Manager in the office.

Vice Mayor Johnson said there needs to be some discussion as to Mr. Baker's salary and benefits before he is officially hired.

Mayor Taylor said she does not think Mr. Finnie needs to be in the office while the new City Manager is there.

Commissioner Miller said there are a lot of things Mr. Finnie needs to explain to Mr. Baker.

She further said from what she was told, Mr. Baker was going to hired because Dante Starks is telling everyone that he already spoke to some members of the Commission and they agreed to vote for Kelvin Baker and she does not want Dante running this city.

Vice Mayor Johnson said she previously put on record what she heard, but she have not spoken to Mr. Starks about anyone, but she heard the rumor in the streets that Mr. Baker was the one to be chosen.

Commissioner Holmes said today was his first time ever seeing Mr. Baker. He wants to withdraw his vote because of the alleged relationship with Mr. Baker and Dante Starks and his vote will go for Vincent Brown.

Mayor Taylor said today was her first time seeing Mr. Baker and the only thing she knew about him was what she read in the newspaper. He impressed her with his answers and he has experience as City Manager.

Commissioner Holmes said he will change what he previously said and go back to his original vote, but if Mr. Baker is hired and he finds out Dante Starks has a relationship with Mr. Baker; he will be the first person to bring a resolution to fire him.

Commissioner Tydus said each member of the commission was told to submit two names of candidates to be interviewed. She submitted Kelvin Baker name based on his resume and today was her first time seeing Mr. Baker.

She asked her colleagues have she had any conversation with them in regards to Kelvin Baker?

Mayor Taylor, Vice Mayor Johnson, and Commissioner Holmes replied, no.

Commissioner Tydus continued by saying she has not had any conversation with Dante Starks.

Commissioner Miller said Dante Starks contacted someone from the City Clerk's Office and he was given the names of each candidate that was chosen to be interviewed for City Manager.

Commissioner Holmes asked, did Dante Starks contact the City Clerk's Office to receive the names of candidates that was going to be interviewed?

Interim City Clerk Joanna Flores said she has not spoken to anyone in regards to the names. The only thing she did in regards to the City Manager process was advertised, received resumes, and made copies for the City Commission. The only names she received was from the Mayor because Sha'mecca Lawson was not available.

Commissioner Holmes asked, did Dante Starks contact the City Clerk's Office to receive the names of candidates that was going to be interviewed?

Deputy City Clerk Sha'mecca Lawson said she has never spoke to Dante Starks in regards to the candidate names for City Manager.

Vice Mayor Johnson asked, have you spoke to anyone regarding the candidate's names?

Ms. Lawson replied yes, Commissioner Miller asked her and she provided the names to her.

Vice Mayor Johnson said she asked Sha'mecca not to share the names with anyone and to seal the documents.

Attorney Gilbert said those records are still available, by law they can not be sealed. If anyone had asked the City Clerk's Office for the names, we would have to provide that information.

Mayor Taylor would like to know when Mr. Baker will be available to start his employment with the city.

She asked, is there a based line for the City Manager salary?

Vice Mayor Johnson said the past formula was $8,570, however there needs to be a probationary period and there needs to be some dialogue regarding the influence.

Commissioner Holmes said if the commission decides to hire Mr. Baker, he is going to ask him has Dante Starks called him regarding the commission decision to hire him.

He would like the commission to select a replacement just in case Mr. Baker has been in contact with Dante Starks.

Mayor Taylor said she likes Vincent Brown, but he does not have municipal experience for a City Manager, the other people are David Chiverton and Matthew Schwartz.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes in the event that negotiations fall apart with Mr. Baker that an offer be extended to Vincent Brown to be the City Manager of the City of Opa-locka.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	No

6. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Vice Mayor Johnson, seconded by Commissioner Miller to adjourn the meeting at 2:05 p.m.

MAYOR

ATTEST:

INTERIM CITY CLERK